

(2) For this purpose the expression "trade mark" includes a trade name and a get-up, and a foreign trade mark is a trade mark used for the purpose of indicating that goods in relation to which it is used are those of—

- (a) a person by whom the goods to be valued have been grown, produced, manufactured, selected, offered for sale or otherwise dealt with outside the United Kingdom and the Isle of Man; or
- (b) a person associated in business with any such person as is referred to in paragraph (a) of this sub-paragraph; or
- (c) a person to whom any such person as is mentioned in paragraph (a) or (b) of this sub-paragraph has assigned the goodwill of the business in connection with which the trade mark is used.

4. Two persons shall be deemed to be associated in business with one another if, whether directly or indirectly, either of them has any interest in the business or property of the other, or both have a common interest in any business or property, or some third person has an interest in the business or property of both of them.

CHAPTER 52

Telephone Act, 1951

ARRANGEMENT OF SECTIONS

Section

1. Power of Postmaster General to regulate use of the telephone system, &c.
2. Savings and provision for certain transitional matters.
3. Repeal of ss. 17 and 18 of Telegraph Act, 1868.
4. Short title, interpretation and extent.

An Act to make further provision for enabling the Postmaster General to regulate the use of means of telephonic communication provided by him and the general conduct of telephonic business carried on under his control and to repeal sections seventeen and eighteen of the Telegraph Act, 1868.

[1st August 1951.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The Postmaster General may, with the consent of the Treasury, make regulations for determining the terms and conditions on which the use of means of telephonic communication provided by him (whether through the medium of the public telephone system under his control or otherwise) will be permitted

L* 2 Power of Postmaster General to regulate use of the telephone system, &c.

and for the general conduct of telephonic business carried on under his control, and in particular, but without prejudice to the generality of the foregoing words—

(a) for determining, or providing for determining, the terms and conditions on which telephone calls involving the use of the said system may be made and on which persons may avail themselves of services and facilities directly or indirectly connected with the use of the said system, for fixing, or providing for fixing, charges for such calls, services and facilities and for empowering the Postmaster General to direct that, at such times or during such periods as may be specified in the directions, the charges fixed under this paragraph by the regulations or such of those charges as may be specified in the directions shall be reduced in accordance with the directions;

(b) for fixing, or providing for fixing, charges in respect of—

(i) the provision by the Postmaster General of equipment or apparatus for the purpose of affording means of telephonic communication;

(ii) the installation by him of equipment or apparatus provided by him for that purpose and the connection thereof for use;

(iii) the maintenance and repair by him of equipment or apparatus so provided; and

(iv) the services of operators provided by him for the purpose of operating equipment or apparatus so provided;

and for providing that the provision as aforesaid by him of equipment or apparatus shall be subject to compliance with such terms and conditions as may be specified in or determined under the regulations;

(c) for providing—

(i) in a case where, after the connection for use of equipment or apparatus provided as aforesaid for the benefit of a person, it ceases, in such circumstances as may be specified in the regulations, to be so provided before the expiration of such period beginning with the day on which it was connected for use as may be specified in or determined under the regulations; and

(ii) in a case where work done by the Postmaster General for the purpose of installing equipment or apparatus for the benefit of a person is, in any such circumstances, rendered abortive before the connection of the equipment or apparatus for use;

for the payment to the Postmaster General, towards recompensing him for loss of revenue by way of charges

in respect of the provision of the equipment or apparatus or, as the case may be, for the cost incurred by him in doing the work, of a sum assessed by him in accordance with such principles as may be specified in the regulations; and

- (d) for determining the times at which, the manner in which and the persons by whom any such charges as are mentioned in paragraphs (a) and (b) of this subsection or any sum payable by virtue of paragraph (c) thereof shall be paid, for empowering the Postmaster General to require the furnishing to him of security for the payment of any such charges or sum and for empowering him to remit, in whole or in part, payment of any such charges or sum.

(2) Different provision and charges may be made and fixed by or under regulations under this section in relation to different circumstances and classes of case, and any such regulations may provide for any incidental or supplementary matters for which it appears to the Postmaster General to be requisite or expedient for the purposes of the regulations to provide.

(3) The powers conferred by this section on the Postmaster General shall be exercisable by statutory instrument which shall be subject to annulment in pursuance of a resolution of either House of Parliament.

2.—(1) Nothing in the foregoing section or in regulations made thereunder shall be construed as precluding the Postmaster General from entering into an agreement with a person for the provision by the Postmaster General, on terms and conditions specified in the agreement, of equipment or apparatus for the purpose of affording means of telephonic communication. Savings and provision for certain transitional matters.

(2) Nothing in the foregoing section shall authorise the making of regulations determining any such agreement as aforesaid (whether made before or after the passing of this Act).

(3) Regulations under the foregoing section may make, in relation to cases where, on the determination (whether by effluxion of time or otherwise) of any such agreement as is mentioned in subsection (1) of this section (whether made before or after the passing of this Act), enjoyment of all or any of the equipment and apparatus provided under the agreement immediately before the determination thereof continues without interruption, and so continues otherwise than by virtue of a further agreement, such provision as appears to the Postmaster General to be requisite or expedient for the purposes of, or in connection with, the transition from a system whereunder rights and obligations relating to the enjoyment of equipment and apparatus provided by the Postmaster General attach by virtue of an agreement to a system whereunder such rights and obligations attach by virtue of the regulations.

(4) Nothing in the foregoing section shall be construed as implying that the Postmaster General is under any obligation to provide equipment or apparatus for the purpose of affording means of telephonic communication.

48 & 49 Vict.
c. 58. (5) Nothing in the foregoing section shall affect the operation of section two of the Telegraph Act, 1885 (which empowers the Postmaster General to make regulations for the conduct of telegraphic business).

Repeal of
ss. 17 and 18
of Telegraph
Act, 1868.
31 & 32 Vict.
c. 110.

3. Sections seventeen and eighteen of the Telegraph Act, 1868 (which respectively require that telegraphic messages having priority in order of transmission over other messages shall be stamped with the word "priority" by the Secretary of State or a government department and retained for twelve months by the Postmaster General and that payments to the Postmaster General for the transmission of telegraphic messages from one place to another within the United Kingdom, the Channel Islands and the Isle of Man shall be made by means of stamps) are hereby repealed.

Short title,
interpretation
and extent.

4.—(1) This Act may be cited as the Telephone Act, 1951.

(2) References in this Act to any enactment shall be construed as references to that enactment as amended by any subsequent enactment.

(3) It is hereby declared that this Act extends to Northern Ireland.

(4) His Majesty may by Order in Council direct that this Act shall extend to the Channel Islands subject to such exceptions, adaptations and modifications, if any, as may be specified in the Order.

(5) This Act shall extend to the Isle of Man.

CHAPTER 53

Midwives Act, 1951

ARRANGEMENT OF SECTIONS

The Central Midwives Board

Section

1. Constitution and functions of the Central Midwives Board.

Provisions relating to the Roll of Midwives and the Certification and Discipline of Midwives

2. The roll of midwives.
3. Removal of midwives from the roll.
4. Power of the Board to make rules as to certification of midwives, &c.
5. Certification of midwives certified in Scotland or Northern Ireland.